

DISTRICT COURT, DENVER COUNTY, COLORADO Court Address: 1437 Bannock Street Denver, CO 80202		DATE FILED: November 2, 2020 4:34 PM FILING ID: 551799F124A33 CASE NUMBER: 2020CV33709
Plaintiff: JASON D. YEAGER v. Defendants: DING J. ZHONG and ALLSTATE FIRE AND CASUALTY INSURANCE COMPANY	▲ COURT USE ONLY ▲	
Dezarae LaCrue, Atty. Reg. #40290 Josh Hotchkiss, Atty. Reg. #53105 Franklin D. Azar & Associates, P.C. 14426 East Evans Avenue Aurora, CO 80014 Phone Number: (303) 757-3300 Fax Number: (303) 757-3206 E-Mail: lacrue@fdazar.com hotchkissj@fdazar.com	Case No.: Division: Courtroom:	
COMPLAINT		

COMES NOW Plaintiff, Jason D. Yeager, by and through his attorneys, Franklin D. Azar and Associates, P.C. for his Complaint against the Defendants, states and alleges as follows:

I. PARTIES, JURISDICTION, AND VENUE

1. Plaintiff Jason D. Yeager (hereinafter “Mr. Yeager”) is an individual and resident of the State of Colorado.
2. Defendant Ding J. Zhong (hereinafter “Defendant Zhong”) is an individual and, upon information and belief, a current resident of the State of Colorado.
3. Defendant Allstate Fire and Casualty Insurance Company (“Defendant Allstate”) is a company with a registered agent in State of Colorado and regularly conducts business activities in the State of Colorado.
4. Upon information and belief, Defendant Allstate’s registered agent is located at 1560 Broadway, Suite 850, Denver, CO 80202.
5. Jurisdiction is proper in this action pursuant to C.R.S. § 13-1-124.

6. Venue is proper in this action pursuant to C.R.C.P. § 98(c)(1) because Defendant Allstate can be found and is registered to do business in the City and County of Denver Colorado.

II. GENERAL ALLEGATIONS

7. This claim arises from a motor vehicle collision between Defendant Zhong and Mr. Yeager.
8. The collision occurred on November 11, 2019, at approximately 3:59 PM.
9. There were no adverse weather conditions at the time of the collision.
10. The road conditions were dry at the time of the collision.
11. Defendant Zhong was driving a 2001 Honda Accord (hereinafter “the Zhong vehicle”) at the time of the collision.
12. The Zhong vehicle bore Colorado license plate WOT024 at the time of the collision.
13. The Vehicle Identification Number of the Zhong vehicle is 1HGCG56641A026180.
14. Mr. Yeager was driving his 2002 Jeep Cherokee at the time of the collision.
15. The collision occurred in the 6900 block of northbound Interstate 25 (hereinafter “I-25”), Greenwood Village, Arapahoe County, Colorado.
16. Mr. Yeager was traveling northbound in the number 4 lane of I-25 immediately before the collision.
17. Defendant Zhong was traveling northbound in the number 5 lane of I-25 immediately before the collision.
18. Defendant Zhong changed lanes from the number 5 lane to the number 4 lane immediately before the collision.
19. When Defendant Zhong changed lanes, he collided with the passenger side of Mr. Yeager’s vehicle.
20. Mr. Yeager’s vehicle sustained damage as a result of the collision.
21. The Zhong vehicle sustained damage as a result of the collision.
22. Defendant Zhong changed lanes before it was safe to do so.
23. The Greenwood Police Department investigated the collision.
24. Greenwood Village Officer Jones issued Defendant Zhong a traffic citation for Careless Driving pursuant to Common Code 141.
25. Mr. Yeager incurred injuries, losses, and damages as a result of the collision.
26. Colorado traffic rules and regulations applied to Defendant Zhong at the time of the collision.

27. As a driver licensed in Colorado, Defendant Zhong had a duty to drive safely.
28. As a driver licensed in Colorado, Defendant Zhong had a duty to act as a reasonable driver while operating his vehicle.
29. As a driver licensed in Colorado, Defendant Zhong was required safely change lanes at the time of the collision.
30. As a driver licensed in Colorado, Defendant Zhong was required be on proper lookout before changing lanes immediately before the collision.
31. As a driver licensed in Colorado, Defendant Zhong had a duty to follow all traffic rules and regulations.
32. Defendant Zhong operated his vehicle in disregard of the traffic rules and regulations.
33. Defendant Zhong was driving carelessly at the time of the collision.
34. Defendant Zhong's careless driving was the cause of the collision.
35. Defendant Zhong did not meet his duty of reasonable care because he failed to safely change lanes as traffic conditions required.
36. Defendant Zhong's unreasonable acts immediately before the collision were in violation of his duty of reasonable care to other drivers on the road.
37. Defendant Zhong's unreasonable acts immediately before the collision were in violation of his duty of reasonable care to Mr. Yeager.
38. Defendant's unreasonable conduct immediately before the time of the collision was sufficient to cause and did cause injury to Mr. Yeager.
39. No third person caused the collision.
40. Mr. Yeager did not act in any way that caused or contributed to the cause of the collision.
41. Mr. Yeager has not failed to mitigate his damages.
42. Mr. Yeager was wearing his seatbelt at the time of the collision.

43. Mr. Yeager's injuries, losses, and damages were caused by Defendant Zhong's negligence.
44. Mr. Yeager sustained injuries to his cervical spine, thoracic spine, and lumbar spine as a result of the crash.
45. Car crashes can cause injuries to the human spine.
46. Mr. Yeager required surgical repair of his cervical spine as a result of the collision.
47. Defendant Zhong did not possess liability insurance at the time of the collision.
48. Defendant Zhong's liability insurance company denied coverage.
49. Defendant Zhong was uninsured for purposes of covering Mr. Yeager's injuries, damages, and losses.
50. Mr. Yeager purchased uninsured motorist (UM) insurance coverage from Defendant Allstate prior to the subject motor vehicle collision.
51. Mr. Yeager's UM insurance policy coverage limits with Defendant Allstate were \$250,000.00 per person at the time of the collision.
52. Mr. Yeager's UM policy with Allstate was in effect at the time of the subject collision with Defendant Zhong.
53. Mr. Yeager paid additional premiums for his UM coverage.
54. Allstate knows insureds purchase UM coverage to protect themselves in case they are injured through no fault of their own.
55. In November 2019, Defendant Allstate knew Mr. Yeager was claiming he was injured in the subject crash.
56. In December 2019, Defendant Allstate knew Defendant Zhong was uninsured.
57. In December 2019, Defendant Allstate knew Mr. Yeager was claiming his spine was injured in the subject crash.
58. In December 2019, Defendant Allstate knew Mr. Yeager underwent radiological imaging of his spine.
59. In December 2019, Defendant Allstate had in its possession signed authorizations for release of Mr. Yeager's medical records.
60. In December 2019, Defendant Allstate could have obtained any medical record needed for its evaluation of Mr. Yeager's claim.
61. In January 2020, Defendant Allstate knew Mr. Yeager claimed injuries to his cervical spine as a result of injuries he sustained in the subject crash.
62. In January 2020, Allstate knew Mr. Yeager would undergo surgical repair of his neck if

conservative care failed.

63. In February 2020, Allstate had in its possession a complete list of Mr. Yeager's medical providers and signed authorization for release of information.
64. In April 2020, Defendant Allstate had yet to evaluate any medical records it received on its own.
65. In April 2020, counsel for Mr. Yeager provided medical bills and records to Defendant Allstate and requested payment of UM benefits owed.
66. In April 2020, Defendant Allstate had in its possession medical records that indicated Mr. Yeager had a cervical injury and was a candidate for cervical disc arthroplasty of the C5-6 and C6-7 levels.
67. In May 2020, Defendant Allstate paid Mr. Yeager UM benefits in the amount of \$23,778.37 for bodily injuries sustained in the November 1, 2019, motor vehicle crash.
68. Defendant Allstate's payment of \$23,778.37 of UM benefits did not include any condition.
69. Defendant Allstate's payment of \$23,778.37 of UM benefits did not include any assertion Mr. Yeager's medical expenses were unrelated to the subject crash.
70. In May 2020, Defendant Allstate knew Mr. Yeager was going to undergo surgery on his cervical spine.
71. In May 2020, counsel for Mr. Yeager asked Defendant Allstate to notify him immediately if Allstate disputed Mr. Yeager's need for surgery on his cervical spine.
72. In May 2020, Defendant Allstate did not dispute Mr. Yeager's need for surgery on his cervical spine.
73. In May 2020, counsel for Mr. Yeager asked Defendant Allstate to notify him immediately if Allstate disputed the causal relationship between the subject crash and Mr. Yeager's need for surgery on his cervical spine.
74. In May 2020, Defendant Allstate did not dispute the casual relationship between the subject crash and Mr. Yeager's need for surgery on his cervical spine.
75. Defendant Allstate did not dispute Mr. Yeager's need for cervical surgery or the causal relationship to the subject crash in June 2020.
76. In June 2020, Defendant Allstate offered to settle Mr. Yeager's claim for \$23,778.37 despite knowing he was planning on having cervical spine surgery.
77. Requesting a settlement negotiation or attempting to settle the claim in light of the insured's ongoing treatment is not appropriate or reasonable.
78. In June 2020, Defendant Allstate had yet to complete its investigation of Mr. Yeager's pre-crash medical condition, despite offering to settle his claim,

79. In June 2020, Defendant Allstate once again asked for a list of Mr. Yeager's prior medical providers despite having the list in its possession since February 2020.
80. Defendant Allstate did not dispute Mr. Yeager's need for cervical surgery or the causal relationship to the subject crash in July 2020.
81. In July 2020, Mr. Yeager underwent cervical disc replacement surgery of his C5-6 and C6-7.
82. In July 2020, Defendant Allstate had in its possession Mr. Yeager's past medical records dating back to 2016.
83. Defendant Allstate did not dispute Mr. Yeager's need for cervical surgery or the causal relationship to the subject crash in August 2020.
84. In August 2020, Defendant Allstate had yet to complete its investigation of Mr. Yeager's pre-crash medical condition, despite offering to settle his claim.
85. In August 2020, Defendant Allstate retained a medical expert to review Mr. Yeager's medical treatment despite having medical records since at least April 2020.
86. In September 2020, Defendant Allstate had not completed its investigation of Mr. Yeager's pre-crash medical condition, despite offering to settle his claim.
87. In September 2020, Defendant Allstate had in its possession medical bills and records related to Mr. Yeager's cervical disc replacement surgery of his C5-6 and C6-7 discs.
88. In September 2020, Defendant Allstate had in its possession medical bills totaling \$71,528.91 related to the subject crash.
89. In September 2020, Mr. Yeager requested Defendant Allstate pay UM benefits owed.
90. In September 2020, Defendant Allstate refused to pay additional UM benefits to Mr. Yeager.
91. Defendant Allstate did not dispute Mr. Yeager's need for cervical surgery or the causal relationship to the subject crash in September 2020.
92. In October 2020, Defendant Allstate refused to pay additional UM benefits to Mr. Yeager.
93. In October 2020, Defendant Allstate obtained a report from Dr. Weinstein that – for the first time – refuted the causal relationship between the subject crash and Mr. Yeager's need for cervical spine surgery.

94. Dr. Weinstein has never personally evaluated Mr. Yeager.
95. Dr. Weinstein has never seen Mr. Yeager's MRI films.
96. Allstate has disregarded evidence contrary to Dr. Weinstein's opinions.
97. Defendant Allstate knows Mr. Yeager's treating doctor believes there is a causal relationship between the subject crash and Mr. Yeager's cervical spine surgery.
98. Defendant Allstate never took the opportunity to speak with any of Mr. Yeager's doctors about the surgical recommendation or the surgery.
99. Defendant Allstate is required to understand the law of Colorado that pertain to insurance coverage.
100. In October 2020, Defendant Allstate knew The Supreme Court had earlier stated:

"Like the Court of Appeals, we think that section 10-3-1115's plain language is clear, and it imposes the duty it says it imposes – that is, an insurer can't unreasonably delay or deny paying a covered benefit without a reasonable basis for doing so." *State Farm v. Fisher*, 2018 CO 39, ¶ 24.
101. Allstate did nothing to investigate whether Mr. Yeager was unable to pay for surgery without an advance payment.
102. Defendant Allstate delayed paying UM benefits.
103. Defendant Allstate denied paying UM benefits.
104. Allstate has never asserted Mr. Yeager failed to cooperate with the terms of the policy.
105. Mr. Yeager has never failed to cooperate with Defendant Allstate.
106. Mr. Yeager has fulfilled each condition and obligation placed on him by the insurance policy.
107. Allstate, by withholding benefits owed to Mr. Yeager, retains the money and earns interest on it.
108. Allstate, as a company, evaluates hundreds of claims involving injuries to the cervical spine each year.
109. Allstate, as a company, evaluates hundreds of claims involving cervical neck surgeries each year.
110. Allstate has or should have information relevant to the general damages caused by

cervical neck injuries and neck surgeries.

111. Allstate has or should have information relevant to the physical impairment caused by cervical neck injuries or neck surgeries.

**III. FIRST CLAIM FOR RELIEF
(Negligence Against Defendant Zhong)**

112. Plaintiff incorporates all prior allegations as though fully set forth herein.
113. Defendant Zhong had a duty to drive reasonably.
114. Defendant Zhong breached his duty to drive reasonably when he failed to safely change lanes as required at the time of the collision.
115. Defendant Zhong's negligence was the cause of the collision.
116. As a direct, proximate, and foreseeable result of the negligence of Defendant Zhong, Mr. Yeager suffered physical injuries.
117. As a direct, proximate, and foreseeable result of the negligence of Defendant Zhong, Mr. Yeager suffered past damages, including physical pain and suffering, inconvenience, loss of enjoyment of life, mental anguish, medical, hospital, doctor bills, and loss of earnings in amounts to be determined at the time of trial.
118. As a direct, proximate, and foreseeable result of the negligence of Defendant Zhong, Mr. Yeager will suffer future non-economic damages, including permanent impairment in an amount to be determined at the time of trial.

**IV. SECOND CLAIM FOR RELIEF
(Negligence *Per Se* Against Defendant Zhong)**

119. Plaintiff incorporates all prior allegations as though fully set forth herein.
120. In the course of the motor vehicle collision described above, Defendant Zhong violated C.R.S. § 42-4-1402, Careless Driving Resulting in Bodily Injury.
121. Mr. Yeager is a member of the class of persons which the aforementioned statute is intended to protect.
122. The purpose of the aforementioned statute is to protect against the type of injuries or losses that Mr. Yeager sustained.

123. The above-described actions of Defendant Zhong constitute negligence *per se*.

124. As a direct, proximate, and foreseeable result of the negligence *per se* of Defendant Zhong, Mr. Yeager suffered physical injuries.

125. As a direct, proximate, and foreseeable result of the negligence *per se* of Defendant Zhong, Mr. Yeager suffered past damages, including physical pain and suffering, inconvenience, loss of enjoyment of life, mental anguish, medical, hospital, doctor bills, and loss of earnings in amounts to be determined at the time of trial.

126. As a direct, proximate, and foreseeable result of the negligence of Defendant Zhong, Mr. Yeager will suffer future non-economic damages, including permanent impairment in an amount to be determined at the time of trial.

**V. THIRD CLAIM FOR RELIEF
(Breach of Contract Defendant Allstate)**

127. Plaintiff incorporates all prior allegations as though fully set forth herein.

128. Sometime prior to the collision, Mr. Yeager entered a contract with Defendant Allstate for the purpose of obtaining automobile insurance, which policy includes coverage for claims involving uninsured motorists and medical payments.

129. Defendant Allstate had a duty to perform in a manner set forth in the policy.

130. Defendant Allstate breached its duty to perform under the policy as more fully described above.

131. At all times pertinent to the within action, all the premiums as required under the contract for insurance were timely paid to Defendant Allstate.

132. Mr. Yeager has fulfilled all of his obligations under the policy issued by Allstate.

133. Mr. Yeager has fully cooperated with Defendant Allstate with regard to his claim for benefits.

134. Mr. Yeager advised Defendant Allstate of a claim for uninsured motorist benefits for this incident under its policy of insurance, and otherwise fully cooperated with Defendant Allstate Insurance in connection with the claim.

135. Mr. Yeager is an intended beneficiary of Defendant Allstate's insurance policy/contract and is this therefore entitled to enforce its terms.

136. As the holder of an uninsured motorist insurance policy, Mr. Yeager is entitled to be compensated by Defendant Allstate for all damages he has incurred and will incur in

excess of the underlying limits as a result of the collision, including past, present, and future medical expenses, pain, suffering, loss of enjoyment of life, loss of earnings and earning capacity, permanency and/or impairment, and disability, under the uninsured motorist coverage of the policy.

137. As a direct result of Defendant Allstate's breaches of its duties to its insured, Mr. Yeager has been damaged including, but not necessarily limited to:
- a. Being forced to incur additional costs in litigation; and,
 - b. Enduring the emotional trauma of being unnecessarily involved in a lawsuit with Defendant Allstate.

VI. FOURTH CLAIM FOR RELIEF
(First Party Statutory Claim Under
C.R.S. § 10-3-1116)

138. Plaintiff incorporates all prior allegations as though fully set forth herein.
139. Defendant Allstate has denied and delayed payment of uninsured motorist benefits to Mr. Yeager without a reasonable basis for its action.
140. Defendant Allstate's unreasonable position and conduct has caused Mr. Yeager damage by the loss of the compensation that is due to him and which Defendant should have previously paid to him.
141. In accordance with C.R.S. § 10-3-1116, Mr. Yeager is entitled to recover from Defendant Allstate two times the covered under-insured motorist benefits, plus reasonable attorney's fees and court costs.
142. As a direct and proximate result of the conduct of Defendant, Mr. Yeager has suffered injuries and damages more fully described above.

VII. FIFTH CLAIM FOR RELIEF
(Bad Faith Defendant Allstate)

143. Plaintiff incorporates all prior allegations as though fully set forth herein.
144. Defendant Allstate owed Mr. Yeager a duty to act in good faith in investigating, reviewing, adjusting, and settling his claims.
145. Defendant Allstate breached its duties to its insured, and acted in bad faith, through its conduct as described above and by engaging in the following, among other acts:
- a. Compelling Mr. Yeager to institute litigation to recover amounts due to him under the uninsured motorist bodily injury liability benefits afforded Mr. Yeager

under the insurance policy including, but not limited to, amounts recoverable for future treatment Mr. Yeager needs;

- b. Favoring the interests of Defendant Allstate, an insurer, over those of Mr. Yeager, an insured, by retaining compensation owed to Mr. Yeager and earning interest on it;
 - c. Failing or delaying payment of reasonable compensation for the injuries, damages, and losses Mr. Yeager suffered at the hands of an uninsured motorist including, but not limited to losses related to Mr. Yeager 's need for additional care;
 - d. Incompetently evaluating Mr. Yeager 's claim; and,
 - e. Failing to respond to Mr. Yeager 's reasonable questions about the basis of Allstate's offer.
146. Defendant Allstate's actions are unreasonable.
147. Defendant Allstate Insurance knew its conduct was unreasonable or disregarded the fact that its conduct was unreasonable.
148. As a direct result of Defendant's breaches of its duties to its insured, Mr. Yeager has been damaged including, but not necessarily limited to:
- a. Being forced to incur additional costs in litigation;
 - b. Enduring the emotional trauma of being unnecessarily involved in a lawsuit with Defendant.

WHEREFORE, Plaintiff Mr. Yeager prays for judgment against Defendant Zhong and Defendant Allstate for all general damages, economic damages, all statutory and necessary costs including, but not limited to, expert witness fees and the expenses incurred in investigation and discovery required to present Plaintiff's claims, attorney fees and interest from the time of the occurrence, post-judgment interest at the requisite rate, and for such other and further relief as this Court shall deem proper, just, and appropriate under the circumstances.

**THE PLAINTIFF RESPECTFULLY REQUESTS TRIAL BY JURY, ON ALL
ISSUES SO TRIABLE.**

Respectfully submitted November 2, 2020.

FRANKLIN D. AZAR & ASSOCIATES, P.C.
By: /s/ Josh Hotchkiss
Josh Hotchkiss #53105

Dezarae LaCrue #40290
ATTORNEYS FOR PLAINTIFF

Plaintiff's Address:
Jason Yeager
17802 E. Cloudberry Drive
Parker, Colorado 80134

In accordance with C.R.C.P. 121, §1-26(9), a printed copy of the document with original signatures is being maintained by the filing party and will be made available for inspection by othis parties or the Court upon request.